

propriate supervisor (*e*). And the mode of application to the Lord Chancellor in these cases is by petition to the Great Seal (*f*).

We now proceed to the consideration of the *duties* of trustees of charities.

9. **Fund must be applied to the charity prescribed.** — It is of course imposed upon the trustees, whether individuals or a corporation, not to convert the charity fund to other uses than according to the intent of the founder or donor; so long as those uses are capable of execution (*g*). Thus if the gift be to find a preacher in Dale, it would be a breach

of trust to provide one in Sale; if it be to find a [*531] preacher, it would be a breach of trust to apply it *to

the poor (*a*): if the trust be for the poor of O., it would be a breach of trust to extend it to other parishes (*b*): if the trust be to repair a chapel, the rents must not be mixed up with the poor-rate for parochial purposes (*c*): if a fund be raised for erecting a hospital, it cannot be diverted to lighting, paving, and cleansing the town (*d*).

10. **Chapel for school.** — A chapel was granted to the trustees of a *school* for the use and benefit of the said school, and though the inhabitants of the hamlet had been long accustomed to attend divine service in the chapel, it was

Court of Queen's Bench was transferred to the High Court of Justice, and by s. 34 of that Act, matters which were formerly within the exclusive cognizance of the Court of Queen's Bench have been assigned to the Queen's Bench Division of the Court.]

(*e*) *King v. St. Catherine's Hall*, 4 T. R. 233, see 244; and see *Ex parte Wrangham*, 2 Ves. jun. 619. [By 36 & 37 Vict. c. 66, s. 17, the visitatorial jurisdiction of the Lord Chancellor is reserved to him and is not transferred to the High Court of Justice or the Court of Appeal.]

(*f*) See the cases cited in notes (*b*) and (*c*); and *Ex parte Inge*, 2 R. & M. 594; *Re Queen's College, Cambridge*, 5 Russ. 54; *Re University College, Oxford*, 2 Ph. 521.

(*g*) See *Attorney-General v. Sherborne School*, 18 Beav. 256; *Attorney-General v. Calvert*, 23 Beav. 248; *Attorney-General v. Corporation of Rochester*, 5 De G. M. & G. 797; *In re Stafford Charities*, 25 Beav. 28; *Attorney-General v. Boucherett*, 25 Beav. 116; *Attorney-General v. Gould*, 28 Beav. 485; *Ward v. Hipwell*, 3 Giff. 547.

(*a*) *Duke*, 116; *Attorney-General v. Newbury Corporation*, C. P. Coop. Cases, 1837-38, 72; *Attorney-General v. Goldsmiths' Company*, Ib. 292; and see *Wivelscom case*, *Duke*, 94.

(*b*) *Attorney-General v. Brandreth*, 1 Y. & C. C. C. 200.

(*c*) *Attorney-General v. Vivian*, 1 Russ. 226, see 237.

(*d*) *Attorney-General v. Kell*, 2 Beav. 575.